

Shyam Sundar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 April 2023 · Writ - C No. 13593 of 2023 · **Petition disposed; supply to be restored within 24 hours**

HEADNOTE

Writ against disconnection during a pending provisional assessment for alleged theft disposed of on the department's statement. Supply to the petitioner's premises shall be restored within 24 hours, and the assessment shall be finalized strictly under the procedure in the Electricity Supply Code, 2005. The provisional assessment was not quashed.

FACTUAL SUMMARY

Shyam Sundar filed a writ against a provisional assessment dated 9 January 2023 issued by the electricity department for alleged theft of electricity, and sought immediate restoration of supply. He had filed an objection, but the respondents disconnected supply without finalizing the assessment. On instruction, departmental counsel told the Court that 8 May 2023 was fixed for hearing the petitioner and that supply would be restored within twenty-four hours.

HOLDING-UNITS

HOLDING-UNIT · Electricity Supply Code, 2005

restoration while theft assessment is finalized

HOLDING

Where supply is disconnected while a provisional assessment for alleged theft remains unfinalized, and the licensee states that a hearing date is fixed and that supply will be restored, the writ is disposed of by directing restoration within 24 hours and by requiring the assessment proceedings to be finalized strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1-2

FLAG The order invokes the Electricity Supply Code, 2005 without numbering a clause.

PRINCIPLE TAGS

final-assessment-strictly-per-supply-code The Court directed the respondents to finalize the pending theft-assessment proceedings strictly in accordance with the Electricity Supply Code, 2005, and to restore supply within 24 hours.

¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT DATED 9 JANUARY 2023 FOR ALLEGED THEFT WAS LIABLE TO BE QUASHED

The Court did not decide the assessment on merits and left it to be finalized under the Electricity Supply Code, 2005.

¶ 1-2